



Western Australia

Multicultural and Ethnic Affairs Commission Act 1983

This Act was repealed by the *Statute Law Revision Act 2006* s. 3(1)
(No. 37 of 2006) as at 4 Jul 2006 (see s. 2).

Multicultural and Ethnic Affairs Commission Act 1983

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Multicultural and Ethnic Affairs Commission **Act 1983**

An Act to establish a Multicultural and Ethnic Affairs Commission **and for other purposes.**

Be it enacted by the Queen's Most Excellent Majesty, by and with the
advice and consent of the Legislative Council and the Legislative
Assembly of Western Australia, in this present Parliament assembled,
and by the authority of the same, as follows: —

1. Short title

This Act may be cited as the *Multicultural and Ethnic Affairs*
Commission Act 1983.

2. Commencement

This Act shall come into operation on a day to be fixed by the
proclamation.

3. Interpretation

In this Act unless the Contrary intention appears —

“**Commissioner**” means the person appointed to be
Commissioner of Multicultural and Ethnic Affairs under section
7;

“**Deputy Commissioner**” means the person appointed to be
Deputy Commissioner for Multicultural and Ethnic Affairs
under section 7;

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“member” means a member of the Commission and includes the Commissioner and the Deputy Commissioner;.

“the Commission” means the Multicultural and Ethnic Affairs Commission established by section 5.

[Section 3 amended by No. 27 of 1986 s.4.]

4. Objects

The objects of this Act are to —

- (a) promote the recognition by the people of this State of the contribution made to the life of the people of this State by the diverse communities in this State and to enhance the appreciation of this contribution;
- (b) encourage the participation of persons of diverse origins, languages or cultures in the life of the people of this State;
- (c) facilitate equal access of persons of diverse origins; languages or cultures to the services and facilities provided for the people of this State;
- (d) encourage people of diverse languages, traditions and cultures among the people of this State to preserve their languages, traditions and cultures; and
- (e) promote cooperation among the diverse communities in this State to achieve a cohesive society.

5. Commission established

There is hereby established a commission to be known as the Multicultural and Ethnic Affairs Commission.

6. Membership of the Commission

- (1) The Commission shall consist of 12 members, being —
 - (a) the Commissioner; and
 - (aa) the Deputy Commissioner;

(b) 10 members appointed by the Governor on the nomination of the Minister.

(2) In nominating a person for appointment as member the Minister shall ensure, as far as is practicable, that the Commission is representative of the persons and communities of diverse origins, languages and cultures among the people of this State.

[Section 6 amended by No. 27 of 1986 s.5.]

7. Commissioner and Deputy Commissioner for Multicultural and Ethnic Affairs

(1) The Governor shall appoint a person to be Commissioner for Multicultural and Ethnic Affairs and a person to be Deputy Commissioner for Multicultural and Ethnic Affairs.

(2) Each of the Commissioner and the Deputy Commissioner shall be appointed for such term not exceeding 4 years as is specified in his instrument of appointment and on the expiration of his term shall be eligible for re-appointment.

(3) The Commissioner and the Deputy Commissioner are entitled to such conditions of service as are determined by the Minister from time to time on the recommendation of the Public Service Board.

(4) Where the Commissioner or the Deputy Commissioner was, immediately before his appointment as Commissioner or Deputy Commissioner an officer of the Public Service of the State, he retains his existing and accruing rights on his appointment as Commissioner or Deputy Commissioner.

[Section 7 amended by No. 27 of 1986 s.6.]

8. Terms and conditions of membership

(1) A member other than the Commissioner, or the Deputy Commissioner shall be appointed for such term not exceeding 3 years as is specified in his instrument of appointment and shall be eligible for reappointment.

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- (2) A member other than the Commissioner, or the Deputy Commissioner is entitled to such remuneration as is determined by the Minister from time to time on the recommendation of the Public Service Board.

[Section 8 amended by No. 27 of 1986 s.7.]

9. Vocation of office

The office of a member becomes vacant if —

- (a) his term of office expires;
- (b) he becomes permanently incapable of performing his duties;
- (c) he resigns his office by written notice addressed to the Minister;
- (d) he is an undischarged bankrupt or a person whose property is subject to an order or arrangement under the laws relating to bankruptcy; or
- (e) he is removed from office by the Governor on the grounds of neglect of duty, his behaviour or incompetence.

10. Existing rights

Acceptance of or appointment to an office of member by any person does not of itself render the provisions of Part 3 of the Public Sector Management Act 1994, or any other Act applying to persons as officers of the Public Service of the State applicable to that person or affect or prejudice the application to him of those provisions if they applied to him at the time of the acceptance of or acting in that office.

[Section 10 amended by No. 32 of 1994 s.3(2).]

11. Casual vacancies

Where an office of member becomes vacant otherwise than by effluxion of time a person appointed to the vacancy shall hold

office only for the balance of the term of the person whose vacancy he fills.

12. Meetings of Commission

- (1) The Commission shall hold such meetings as are necessary for the performance of its functions.
- (2) The Commissioner, in the event of the Commissioner being absent or for any other reason unable to act, the Deputy Commissioner may at any time convene a meeting of the Commission and shall do so when ever directed by the Minister.
- (3) The Commissioner shall preside at all meetings of the Commission at which he is present and the Deputy Commissioner shall preside at all meetings of the Commission at which he is, but the Commissioner is not present.
- (4) If the Commissioner and the Deputy Commissioner are both absent from any meeting of the Commission the members present shall appoint one of their number to preside at the meeting.
- (5) At any meeting of the Commission —
 - (a) 7 members form a quorum;
 - (b) all questions arising at the meeting shall be decided by a majority of the votes of the members present at the meeting;
 - (c) each member, including the person presiding at the meeting, shall be entitled to one vote only on the determination of any question; and
 - (d) in the event of an equality of votes, the question shall be deemed to be determined in the negative.
- (6) Except to the extent that it is prescribed, the Commission may regulate its own procedure in such manner as it thinks fit, and shall cause to be kept minutes of its proceedings.

[Section 12 amended by No. 27 of 1986 s.8.]

13. Functions of the Commission

(1) The functions of the Commission are —

- (a) to investigate, report upon and make recommendations to the Minister on any matter relevant to this Act referred to it by the Minister;
- (b) to liaise with, consult with and advise government departments and government instrumentalities on the implementation of policies that affect or may affect the people of this State in so far as they impinge on persons of diverse origins, languages or cultures;
- (c) to advise the Minister on the application of funds appropriated for the purpose of implementing the objects of this Act;
- (d) to make recommendations to the Minister for the purpose of facilitating the achievement of equal access of persons of diverse origins, traditions or cultures to the use of services and facilities provided for the people of this State;
- (e) to undertake research into and compile information upon the needs of persons of diverse origins, languages or cultures;
- (f) to consult with persons, organizations and groups representing communities of different origins, languages or cultures among the people of this State for the purpose of assisting in implementing the objects of this Act;
- (g) to advise the Minister on any matter relating to immigration policies;
- (h) to encourage and undertake the dissemination of information with respect to the implementation of the objects of this Act.

(2) The Commission shall, in carrying out its functions, encourage wherever possible the participation by voluntary organizations and local authorities and promote practical initiatives by

associations formed by persons of diverse origins, languages or cultures.

- (3) The Minister may from time to time give directions to the Commission with respect to its functions, powers and duties, either generally or with respect to a particular matter, and the Commission shall give effect to those directions.

14. Advisers to Commission

The Commission may, subject to the approval of the Minister and on such terms and conditions as the Minister may determine, invite any body or person to act in an advisory capacity to the Commission in relation to any or all aspects of the functions of the Commission but that invitation shall not be construed as making any person so invited a member of the Commission.

15. Committee

- (1) The Commission may, subject to the approval of the Minister, establish such committees of members or of members and other persons as it thinks fit for the purposes of assisting it to carry out its functions.
- (2) A person other than a member who is appointed to a committee is entitled to such remuneration as is determined by the Minister on the recommendation of the Public Service Board.

16. Delegation

- (1) The Commission may by instrument in writing delegate any of its powers or functions, other than this power of delegation to —
- (a) a member;
- (b) a committee established pursuant to section 15,
- either generally or as provided by the instrument of delegation.

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- (2) For the purposes of this Act, the exercise of a power or the performance of a duty by a delegate under this section shall be deemed to be the exercise of the power or the performance of the duty by the Commission.
- (3) A delegation under this section may —
- (a) be made subject to such conditions, qualifications and exceptions as are set out in the instrument of delegation;
 - (b) be revoked or varied by instrument in writing signed by the Commissioner.
- (4) The Commission may exercise a power or function notwithstanding that it has delegated its exercise or performance under this section.

17. Staff

There may be appointed from time to time under and subject to Part 3 of the *Public Sector Management Act 1994* such officers as may be required for the purposes of assisting the Commission in the effective administration of this Act.

[Section 17 amended by No. 32 of 1994 s.3(2).]

[18. Repealed by No. 98 of 1985 Schedule 1.]

19. Immunity of members to the Commission

No liability shall attach to a member of the Commission or to a member of a committee established under section 15 for any act or omission by him, or by the Commission, in good faith and in the exercise of his or its function, or in the discharge, or purported discharge, of his or its duties under this Act.

20. Regulations

The Governor may make regulations prescribing all matters which by this Act are required or permitted to be prescribed or which are necessary or convenient to be prescribed for carrying out or giving effect to this Act.

21. Commission to expire

- (1) Upon the expiration of 8 years calculated from the date on which this Act comes into force, the Commission shall cease to exist.
- (2) Upon the expiration of the Commission pursuant to subsection (1), the Governor, should the occasion so require, may make regulations providing in all respects for the orderly and proper winding up of the Commission's affairs.

Notes

- ¹ This is a compilation of the *Multicultural and Ethnic Affairs Commission Act 1983* and includes all amendments effected by the other Acts referred to in the following Table.

Compilation table**SCHEDULE 2****TO MULTIFAMILY LOAN AND SECURITY AGREEMENT****Summary of Loan Terms****(Interest Rate Type—ARM 7/6 (SOFR))****(Master Lease)**

<u>Short title.</u>	<u>Num ber and year</u>	<u>Assen t</u>	<u>Commencement</u>
<u>GENERAL</u>			
<u>PARTY AND MULTIFAMILY PROJECT INFORMATION</u>			
<i>Multicultural and Ethnic Affairs Commission Act 1983</i>	82 of 1983	22 Dec 1983	1 Jul 1984 (see <i>Gazette</i> 15 Jun 1984 p. 1629)
<u>Borrower</u>			
<i>Acts Amendment (Financial Administration and Audit) Act 1985</i>	98 of 1985	4 Dec 1985	1 Jul 1986 (see <i>Gazette</i> 30 Jun 1986 p. 2255)
<u>Lender</u>			
<i>Multicultural and Ethnic Affairs Commission Amendment Act 1986</i>	27 of 1986	29 Jul 1986	29 Jul 1986
<u>Master</u>			
<u>Lessee</u>			
<i>Acts Amendment (Public Sector Management) Act 1994 Pt. 2</i>	32 of 1994	29 Jun 1994	1 Oct 1994 (see <i>Gazette</i> 30 Sep 1994 p. 4948)
<u>Key</u>			
<u>Principal</u>			

Short title ~~I. — GENERAL~~ Num Assen Commencement
PARTY AND MULTIFAMILY ber t
PROJECT INFORMATION and
year

This Act was repealed by the Statute Law
Revision Act 2006 s. 3(1) (No. 37 of 2006)
as at 4 Jul 2006 (see s. 2) **Guarantor**

Principal	
Multifamily Project	{DRAFTING NOTE: LIST ALL IF MORE THAN ONE} {INSERT MORTGAGED PROPERTY'S COMMONLY KNOWN NAME}
ADDRESSES	
Borrower's General Business Address	{DRAFTING NOTE: LIST ALL IF MORE THAN ONE}
Borrower's Notice Address	{DRAFTING NOTE: LIST ALL IF MORE THAN ONE; INCLUDE EMAIL ADDRESS}
Multifamily Project Address	{DRAFTING NOTE: LIST ALL IF MORE THAN ONE}
Multifamily Project County	{DRAFTING NOTE: LIST ALL IF MORE THAN ONE}
Key Principal's General Business Address	{DRAFTING NOTE: LIST ALL IF MORE THAN ONE}
Key Principal's Notice Address	{DRAFTING NOTE: LIST ALL IF MORE THAN ONE; INCLUDE EMAIL ADDRESS}
Guarantor's General Business Address	{DRAFTING NOTE: LIST ALL IF MORE THAN ONE}

Guarantor's Notice Address	{DRAFTING NOTE: LIST ALL IF MORE THAN ONE; INCLUDE EMAIL ADDRESS}
Master Lessee's General Business Address	{DRAFTING NOTE: LIST ALL IF MORE THAN ONE}
Master Lessee's Notice Address	{DRAFTING NOTE: LIST ALL IF MORE THAN ONE; INCLUDE EMAIL ADDRESS}
Lender's General Business Address	{DRAFTING NOTE: USE HEADQUARTERS ADDRESS}
Lender's Notice Address	{DRAFTING NOTE: USE SERVICING ADDRESS; INCLUDE EMAIL ADDRESS}
Lender's Payment Address	

H. MULTIFAMILY PROJECT INFORMATION	
Property Square Footage	
Total Parking Spaces	
Total Residential Units	
Affordable Housing Property	☐ Yes ☐ No {DRAFTING NOTE: ONLY INDICATE YES IF THE MORTGAGE LOAN IS UNDERWRITTEN PURSUANT TO

	PART III, CHAPTER 7 OF THE MSS GUIDE}
Loan Type	{DRAFTING NOTE: SELECT ONLY ONE. CONTACT THE FANNIE MAE DEAL TEAM IN THE CASE OF A DROP DEED STRUCTURE (e.g. A TRANSFER OF THE PROPERTY BY DEED INTO A NEW ENTITY PRIOR TO CLOSING FOLLOWED BY A TRANSFER OF CONTROLLING INTERESTS AT CLOSING)} ☐ Acquisition by Deed ☐ Acquisition of Controlling Interests ☐ Refinance ☐ Supplemental Mortgage Loan
Ownership Interests Seller	{DRAFTING NOTE: INSERT “N/A” IF NOT AN ACQUISITION OF OWNERSHIP INTERESTS}
Property Seller	{DRAFTING NOTE: INSERT “N/A” IF NOT AN ACQUISITION BY DEED}

III. MORTGAGE LOAN INFORMATION	
Adjustable Rate	Until the first Rate Change Date, the Initial Adjustable Rate, and from and after each Rate Change Date following the first Rate Change Date until the next Rate Change Date, a per annum interest rate that is the sum of (i) the Current Index, and (ii) the Margin, which sum is then rounded to the nearest three (3)

	decimal places; provided, however, the Adjustable Rate shall never be: (x) <u> </u> more than one percentage point (1%) higher or lower than the Adjustable Rate in effect immediately preceding the Rate Change Date; (y) <u> </u> more than <u> </u>%; or <i>[Insert the sum of the Guaranty Fee, the Servicing Fee, plus six percent (6%), which is the "Lifetime Maximum Interest Rate (%)" as entered by Lender in C&D in the ARM Attribute section of the Commitment tab.]</i> (z) <u> </u> less than the Margin
Amortization Period	<u> </u> (<u> </u>) months <i>[Typically zero (0), three hundred (300) or three hundred sixty (360) months.]</i>
Amortization Type	[Select <u>only</u> one:] ☐ <u> </u> Amortizing ☐ <u> </u> Full Term Interest Only ☐ <u> </u> Partial Interest Only
Current Index	The Index that is effective on the Business Day immediately preceding the applicable Rate Change Date
Effective Date	<u> </u>, 20<u> </u>

**Schedule 2 to Multifamily Loan
and Security Agreement -
Summary of Loan Terms
(Interest Rate Type - ARM 7/6
(SOFR)) (Master Lease)
Fannie Mae**

**Form 6102.ARM.ML
7/6 (SOFR)
06-25**

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First Payment Date	The first day of _____, 20____ {For example: If the Effective Date is June 1, 2023, then the First Payment Date will be July 1, 2023. If the Effective Date is any day in June, 2023 other than June 1, 2023, then the First Payment date will be August 1, 2023.}
{First Principal and Interest Payment Date} {APPLICABLE ONLY FOR PARTIAL INTEREST ONLY AMORTIZATION TYPE}	The first day of _____, 20____ {Insert the calendar month and year immediately following the Last Interest Only Payment Date. For example: If the Last Interest Only Payment Date is June 1, 2023, then the First Principal and Interest Payment Date is July 1, 2023.}
Index	30-Day Average SOFR; provided that, if an Index Transition Event and its related Index Replacement Date have occurred, then the Index shall mean the Index Replacement determined pursuant to the terms of the Loan Agreement
Initial Adjustable Rate	_____ % per annum {DRAFTING NOTE: ROUND TO THREE DECIMAL PLACES}
Initial Monthly Debt Service Payment	{Complete <u>only</u> the applicable option and delete the other.} <i>For Amortizing Loans:</i> \$ _____ {Calculated as the amount required to amortize the original principal balance}

	of the Mortgage Loan in equal monthly installments over the Amortization Period at the Initial Adjustable Rate, using the 30/360 Interest Accrual Method even though Actual/360 is the Interest Accrual Method.] For Full Term Interest Only and Partial Interest Only: \$ _____ [Calculated by multiplying the original principal balance of the Mortgage Loan by the Initial Adjustable Rate, dividing the product by three hundred sixty (360), and multiplying the quotient by the actual number of days elapsed in the applicable month.]
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Interest Accrual Method	Actual/360 (computed on the basis of a three hundred sixty (360) day year and the actual number of calendar days during the applicable month, calculated by multiplying the unpaid principal balance of the Mortgage Loan by the Interest Rate, dividing the product by three hundred sixty (360), and multiplying the quotient obtained by the actual number of days elapsed in the applicable month)
Interest Only Term	_____ (____) months <i>{Insert "0" for Amortizing Loans.}</i>
Interest Rate Type	ARM
{Last Interest Only Payment Date} {APPLICABLE ONLY FOR PARTIAL INTEREST ONLY AMORTIZATION TYPE}	The first day of _____, 20____ <i>{Insert the date that the last interest only payment is due.}</i>
Loan Amount	\$ _____
Loan Term	Eighty-four (84) months
Loan Year	The period beginning on the Effective Date and ending on the last day of _____, _____, and each successive twelve (12) month period thereafter <i>{Insert the month and year which is twelve (12) full calendar months after the Effective Date. For example, if the</i>

	Effective Date is July 1, 2023, then the month and year to insert is June, 2024, but if the Effective Date is any day from the 2nd through the 31st in July, 2023, then the month and year to insert is July, 2024.]
Margin	_____ %
Maturity Date	The first day of _____, 20____, or any later date to which the Maturity Date may be extended (if at all) in connection with Borrower's exercise of the Conversion Option or any earlier date on which the Indebtedness becomes due and payable by acceleration or otherwise
Maximum Permitted Equipment Financing	_____ [Insert the approved maximum, typically two percent (2%) of the unpaid principal balance of the Mortgage Loan or the lesser of \$ _____ [the approved dollar amount] and two percent (2%) of the Outstanding Loan Amount.]
Monthly Debt Service Payment	[Complete <u>only</u> the applicable option and delete the others.] For Amortizing (Actual/360 (30/360 not available)):

**~~Schedule 2 to Multifamily Loan
and Security Agreement -
Summary of Loan Terms
(Interest Rate Type - ARM 7/6
(SOFR)) (Master Lease)
Fannie Mae~~**

**~~Form 6102.ARM.ML
7/6 (SOFR)
06-25~~**

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	(i) for the First Payment Date, the Initial Monthly Debt Service Payment; and (ii) for each Payment Date thereafter until the Mortgage Loan is fully paid, such amount as shall cause the unpaid principal balance of the Mortgage Loan to be amortized in equal monthly installments over the Remaining Amortization Period at the Adjustable Rate (for clause (ii), the 30/360 Interest Accrual Method must be used even though Actual/360 is the Interest Accrual Method) <i>For Full Term Interest Only (Actual/360 (30/360 not available)):</i> (i) for the First Payment Date, the Initial Monthly Debt Service Payment; and (ii) for each Payment Date thereafter until the Mortgage Loan is fully paid, the amount obtained by multiplying the unpaid principal balance of the Mortgage Loan by the Adjustable Rate, dividing the product by three hundred sixty (360), and multiplying the quotient by the actual number of days elapsed in the applicable month <i>For Partial Interest Only (Actual/360 (30/360 not available)):</i>
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	(i) for the First Payment Date, the Initial Monthly Debt Service Payment; (ii) for each Payment Date thereafter through and including the Last Interest Only Payment Date, the amount obtained by multiplying the unpaid principal balance of the Mortgage Loan by the Adjustable Rate, dividing the product by three hundred sixty (360), and multiplying the quotient by the actual number of days elapsed in the applicable month; and (iii) for the First Principal and Interest Payment Date and each Payment Date thereafter until the Mortgage Loan is fully paid, such amount as shall cause the unpaid principal balance of the Mortgage Loan to be amortized in equal monthly installments over the Remaining Amortization Period at the Adjustable Rate (for clause (iii), the 30/360 Interest Accrual Method must be used even though Actual/360 is the Interest Accrual Method)
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Payment Change Date	The first day of the month following each Rate Change Date until the Mortgage Loan is fully paid
Prepayment Lockout Period	The first Loan Year of the Loan Term
Rate Change Date	The First Payment Date and the first day of each month thereafter until the Mortgage Loan is fully paid, subject to any Index Replacement Conforming Changes required upon implementation of any Index Replacement
Remaining Amortization Period	[Complete <u>only</u> the applicable option and delete the others.] <i>{For Amortizing Loans and Partial Interest Only Loans:}</i> As of each Payment Change Date, the Amortization Period minus the number of scheduled Monthly Debt Service Payments that have elapsed since the Effective Date
	<i>{For Interest Only Loans:}</i> N/A

~~IV. — YIELD MAINTENANCE/PREPAYMENT PREMIUM INFORMATION~~

Prepayment Premium Term	The period beginning on the Effective Date and ending on the last calendar day of the fourth month prior to the month in which the Maturity Date occurs
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V. RESERVE INFORMATION	
Completion Period	Within _____ () months after the Effective Date or as otherwise shown on the Required Repair Schedule
Initial Replacement Reserve Deposit	\$ _____
Maximum Inspection Fee	\$ _____ [DRAFTING NOTE FOR ANY GREEN REWARDS MORTGAGE LOAN: in lieu of a dollar amount, replace the blank with “actual expenses incurred”]
Maximum Repair Disbursement Interval	_____ () time(s) per calendar [month][quarter]
Maximum Replacement Reserve Disbursement Interval	_____ () time(s) per calendar [month][quarter]
Maximum Restoration Reserve Disbursement Interval	_____ () time(s) per calendar [month][quarter]
Minimum Repairs Disbursement Amount	\$ _____
Minimum Replacement Reserve Disbursement Amount	\$ _____

Minimum Restoration Reserve Disbursement Amount	\$ _____
Monthly Replacement Reserve Deposit	\$ _____
Repair Threshold	\$ _____
Repairs Escrow Account Administration Fee	\$ _____, payable [one time][monthly]
Repairs Escrow Deposit	\$ _____
Replacement Reserve Account Administration Fee	\$ _____, payable [monthly][annually]
Replacement Reserve Account Interest Disbursement Frequency	[Monthly][Quarterly]
Replacement Threshold	\$ _____
Restoration Reserve Account Administration Fee	\$ _____, payable [monthly][annually]
Restoration Threshold	\$ _____

VI. — CONVERSION OPTION — ARM LOAN	
Conversion Review Fee	A non-refundable fee in the amount of \$ _____

Minimum Conversion Debt Service Coverage Ratio	<i>[Insert the applicable Fixed Rate Debt Service Coverage Ratio (which shall in no event be lower than 1.25 for Tier 2, 1.35 for Tier 3, or 1.55 for Tier 4) required for the asset class of the Mortgaged Property and the Tier of the Mortgage Loan as further set forth in Form 4660 in effect at Mortgage Loan origination.]</i>	
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